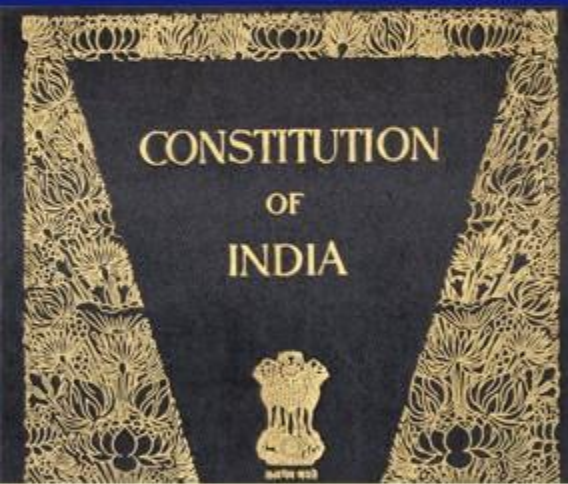


INDIAN POLITY



MODULE - 59

**CENTRAL COUNCIL
OF MINISTERS**

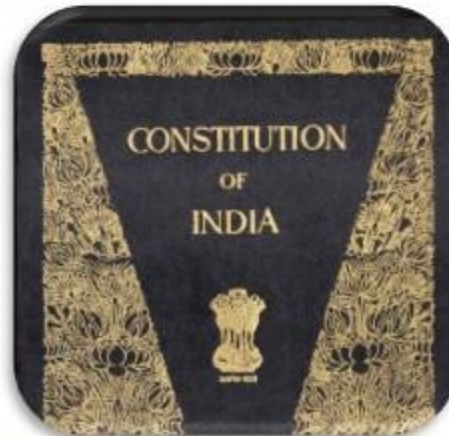
CENTRAL COUNCIL OF MINISTERS

- 1 The principles of Parliamentary System of Government are not detailed in the Constitution, but two Articles (74 and 75) deal with them in a broad, sketchy and general manner.



Article 74 deals with the status of the council of ministers

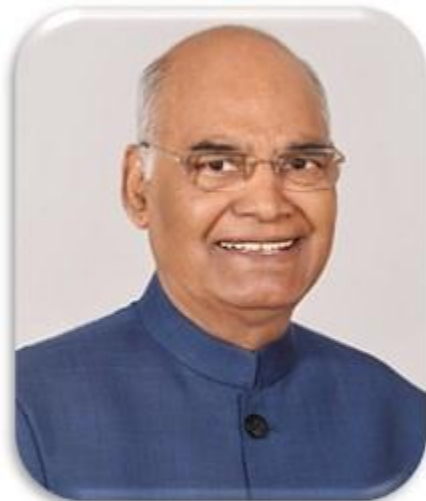
Article 75 deals with the appointment, tenure, responsibility, qualification, oath and salaries and allowances of the ministers.



CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONAL PROVISIONS

ARTICLE 74 COUNCIL OF MINISTERS TO AID AND ADVISE PRESIDENT



- 1 There shall be a **Council of Ministers** with the Prime Minister at the head to **aid and advise the President** who shall, in the exercise of his functions, act in accordance with such advice.
- 2 However, the President may require the Council of Ministers to **reconsider such advice** and the President shall act in accordance with the advice tendered after such reconsideration.
- 3 The advice tendered by Ministers to the President **shall not be inquired into in any court.**

CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONAL PROVISIONS

ARTICLE 75 OTHER PROVISIONS AS TO MINISTERS

- 1 The Prime Minister shall be appointed by the President and the other Ministers shall be **appointed by the President** on the advice of the Prime Minister.



- 2 The total number of ministers, including the Prime Minister, in the Council of Ministers shall **not exceed 15% of the total strength of the Lok Sabha**. This provision was added by the **91st Amendment Act of 2003**.
- 3 A member of either house of Parliament belonging to any political party who is **disqualified on the ground of defection** shall also be **disqualified to be appointed as a minister**. This provision was also added by the **91st Amendment Act of 2003**.

CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONAL PROVISIONS

ARTICLE 75 OTHER PROVISIONS AS TO MINISTERS



- 4 The ministers shall hold office during the pleasure of the President.

- 5 The council of ministers shall be collectively responsible to the Lok Sabha.

- 6 The President shall administer the oaths of office and secrecy to a minister.

- 7 A minister who is not a member of the Parliament (either house) for any period of six consecutive months shall cease to be a minister.

- 8 The salaries and allowances of ministers shall be determined by the Parliament.

QUESTION

Consider the following statements:

- 1) The Council of Ministers in the Centre shall be collectively responsible to the Parliament.
- 2) The Union Ministers shall hold the office during the pleasure of the President of India.
- 3) The Prime Minister shall communicate to the President about the proposals for legislation.

Which of the given above is / are correct?

- | | |
|---------------|-----------------|
| a) 1 only | b) 2 & 3 only |
| c) 1 & 2 only | d) All 1, 2 & 3 |

CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONAL PROVISIONS

4 The President shall **make rules for the more convenient transaction of the business of the Government of India**, and for the allocation among Ministers of the said business.

ARTICLE 77
**CONDUCT OF
BUSINESS OF THE
GOVERNMENT OF
INDIA**

1 All **executive action** of the Government of India shall be expressed to be taken in the **name of the President**.



3 Further, the validity of an order or instrument which is so authenticated shall not be called in question on the ground that it is not an order or instrument made or executed by the President.

2 Orders and other instruments made and executed in the name of the President shall be authenticated in such manner **as may be specified in rules to be made by the President**.

QUESTION

Consider the following statements:

- 1) The President shall make rules for the more convenient transaction of the business of the Government of India, and for the allocation among Ministers of the said business.
- 2) All executive actions of the Government of India shall be expressed to be taken in the name of the Prime Minister.

Which of the above is / are correct?

- | | |
|---------------|--------------------|
| a) 1 only | b) 2 only |
| c) Both 1 & 2 | d) Neither 1 nor 2 |

CENTRAL COUNCIL OF MINISTERS

CONSTITUTIONAL PROVISIONS

ARTICLE 78 DUTIES OF PRIME MINISTER



1 To communicate to the President all decisions of the Council of Ministers relating to the administration of the affairs of the Union and proposals for legislation

2 To furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for

3 If the President so requires, to submit for the consideration of the Council of Ministers any matter on which a decision has been taken by a Minister but which has not been considered by the Council.

CENTRAL COUNCIL OF MINISTERS

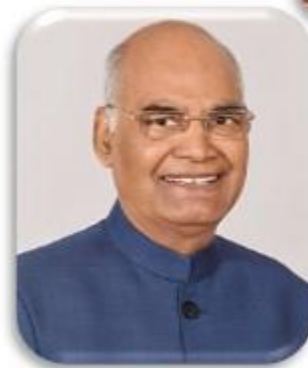
NATURE OF ADVICE BY MINISTERS

4 This provision emphasises the intimate and the confidential relationship between the President and the ministers.

3 Further, the nature of advice tendered by ministers to the President cannot be enquired by any court.



A
D
V
I
C
E



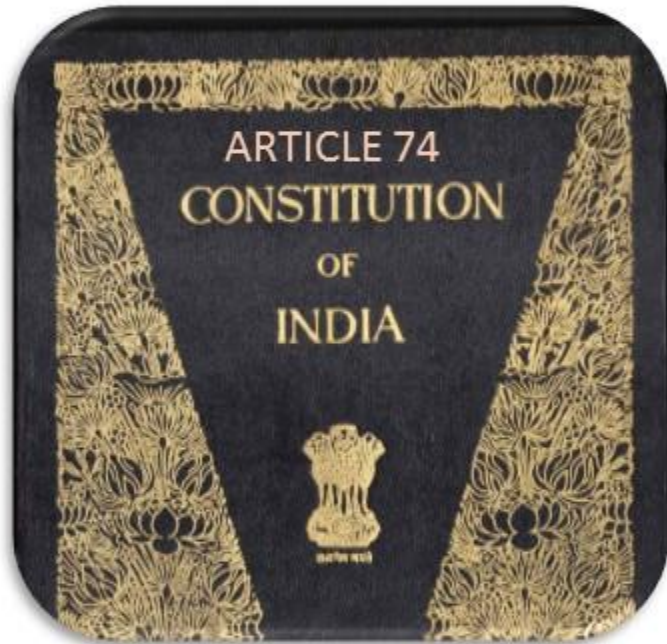
1 Article 74 provides for a council of ministers with the Prime Minister at the head to aid and advise the President in the exercise of his functions.

2 The 42nd and 44th Constitutional Amendment Acts have made the advice binding on the President.

CENTRAL COUNCIL OF MINISTERS

NATURE OF ADVICE BY MINISTERS

WHAT IS THE SUPREME COURT'S OBSERVATION WITH REGARD TO ARTICLE 74?



- 1 In 1971, the Supreme Court held that even after the dissolution of the Lok Sabha, the council of ministers does not cease to hold office.

- 2 Article 74 is mandatory and, therefore, the president cannot exercise the executive power without the aid and advise of the council of ministers.

- 3 Any exercise of executive power without the aid and advice will be unconstitutional as being violative of Article 74.

- 4 Again in 1974, the court held that wherever the Constitution requires the satisfaction of the President, the satisfaction is not the personal satisfaction of the President but it is the satisfaction of the council of ministers.

CENTRAL COUNCIL OF MINISTERS

APPOINTMENT OF MINISTERS

CAN A NON-MEMBER BE APPOINTED AS A MINISTER?

- 1 The Prime Minister is appointed by the President, while the other ministers are appointed by the President on the advice of the Prime Minister.
- 2 This means that the President can appoint only those persons as ministers who are recommended by the Prime minister.
- 3 Usually, **the members of Parliament, either Lok Sabha or Rajya Sabha, are appointed as ministers.**
- 4 A person who is not a member of either House of Parliament can also be appointed as a minister.
- 5 But, **within six months, he must become a member (either by election or by nomination)** of either House of Parliament, otherwise, he ceases to be a minister.
- 6 A minister who is a member of one House of Parliament has the right to speak and to take part in the proceedings of the other House also, but **he can vote only in the House of which he is a member.**

CENTRAL COUNCIL OF MINISTERS

OATH AND SALARY OF MINISTERS



1

Before a minister enters upon his office, the President administers to him the oaths of office and secrecy. In his oath of office, the minister swears:

- To **bear true faith and allegiance** to the Constitution of India.
- To **uphold the sovereignty and integrity** of India
- To **faithfully and conscientiously discharge** the duties of his office.
- To **do right to all manner of people** in accordance with the Constitution and the law, without fear or favour, affection or ill will.

CENTRAL COUNCIL OF MINISTERS

OATH AND SALARY OF MINISTERS

- 2 In his oath of secrecy, the minister swears **that he will not directly or indirectly communicate or reveal** to any person(s) any matter that is brought under his consideration or becomes known to him as a Union minister **except as may be required for the due discharge of his duties** as such minister.



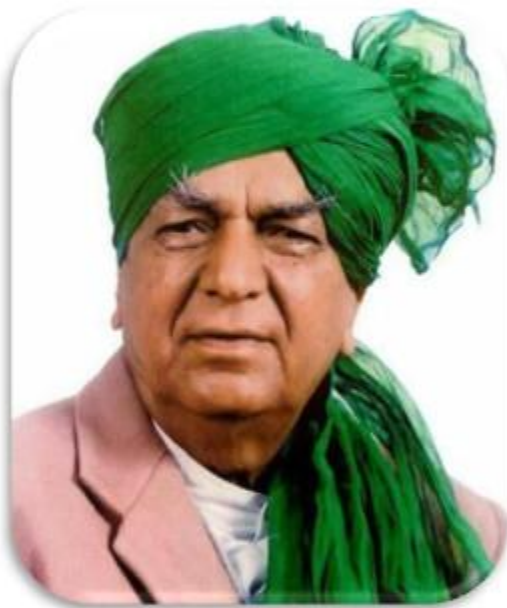
CENTRAL COUNCIL OF MINISTERS

OATH AND SALARY OF MINISTERS

WHAT ABOUT THE APPOINTMENT OF THE DEPUTY PRIME MINISTER?



VP SINGH



DEVI LAL

- 1 In 1990, the oath by Devi Lal as deputy prime minister was challenged as being unconstitutional as the Constitution provides only for the Prime Minister and ministers.
- 2 The Supreme Court upheld the oath as valid and **stated that describing a person as Deputy Prime Minister is descriptive only and such description does not confer on him any powers of Prime Minister.**
- 3 The salaries and allowances of ministers are determined by Parliament.

CENTRAL COUNCIL OF MINISTERS

RESPONSIBILITY OF MINISTERS

WHAT DO YOU UNDERSTAND BY “COLLECTIVE RESPONSIBILITY”?



- 1 The fundamental principle underlying the working of parliamentary system of government is the principle of collective responsibility.

- 2 Article 75 clearly states that the council of ministers is collectively responsible to the Lok Sabha.
- 3 This means that all the ministers own joint responsibility to the Lok Sabha for all their acts of omission and commission. They work as a team and swim or sink together.
- 4 When the Lok Sabha passes a no-confidence motion against the council of ministers, all the ministers have to resign including those ministers who are from the Rajya Sabha.

CENTRAL COUNCIL OF MINISTERS

RESPONSIBILITY OF MINISTERS

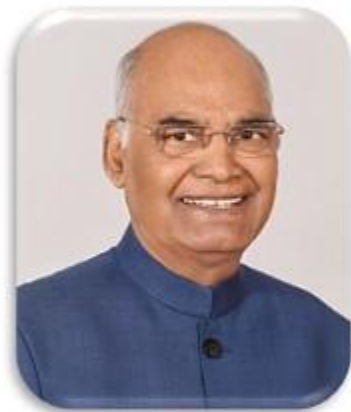
WHAT DO YOU UNDERSTAND BY “COLLECTIVE RESPONSIBILITY”?

- 5 Alternatively, the council of ministers can advise the President to dissolve the Lok Sabha on the ground that the House does not represent the views of the electorate faithfully and call for fresh elections.
- 6 The principle of collective responsibility also means that the Cabinet decisions bind all cabinet ministers (and other ministers) even if they differed in the cabinet meeting.
- 7 It is the duty of every minister to stand by cabinet decisions and support them both within and outside the Parliament.
- 8 If any minister disagrees with a cabinet decision and is not prepared to defend it, he must resign.
- 9 Several ministers have resigned in the past owing to their differences with the cabinet.
- 10 For example, Dr BR Ambedkar resigned because of his differences with his colleagues on the Hindu Code Bill in 1953.

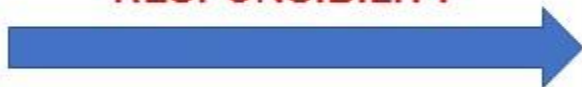
CENTRAL COUNCIL OF MINISTERS

RESPONSIBILITY OF MINISTERS

WHAT DO YOU UNDERSTAND BY “INDIVIDUAL RESPONSIBILITY”?



INDIVIDUAL
RESPONSIBILITY



- 1 Article 75 also contains the principle of individual responsibility.
- 2 It states that the ministers hold office during the pleasure of the president, which means that the President **can remove a minister even at a time when the council of ministers enjoys the confidence of the Lok Sabha.**
- 3 However, the President removes a minister **only on the advice of the Prime Minister.**

CENTRAL COUNCIL OF MINISTERS

RESPONSIBILITY OF MINISTERS

WHAT DO YOU UNDERSTAND BY “INDIVIDUAL RESPONSIBILITY”?



4 In case of a difference of opinion or dissatisfaction with the performance of a minister, the Prime Minister can ask him to resign or advice the President to dismiss him.

5 By exercising this power, the Prime Minister can ensure the realisation of the rule of collective responsibility.

6 In this context, Dr B R Ambedkar observed:
*“Collective responsibility can be achieved only through the instrumentality of the Prime Minister. Therefore, unless and until we create that office and **endow that office with statutory authority to nominate and dismiss ministers, there can be no collective responsibility.**”*

CENTRAL COUNCIL OF MINISTERS

RESPONSIBILITY OF MINISTERS

WHAT ABOUT LEGAL RESPONSIBILITY?



1 In Britain, every order of the King for any public act is **countersigned by a minister**.

2 If the order is in violation of any law, the minister would be held responsible and would be liable in the court.

3 The legally accepted phrase in Britain is, “The king can do no wrong.” Hence, he cannot be sued in any court.

4 In India, on the other hand, there is no provision in the Constitution **for the system of legal responsibility of a minister**.

5 It is not required that an order of the President for a public act should be countersigned by a minister.

6 Moreover, the courts are barred from enquiring into the nature of advice rendered by the ministers to the President.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9